

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201501939	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/13/2014 10:30 PM	Location of Incident: Bay Street and Vanderbilt Avenue	18 Mo. SOL 11/13/2015	Precinct: 120		
Date/Time CV Reported Tue, 03/17/2015 12:50 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 03/17/2015 12:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Solomon	21067	946280	120 PCT
2. SGT Jason Deonarinesingh	02037	936469	GANG BN
3. POM Andrew Babajko	06029	947974	WARRSEC
4. An officer			120PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Solomon	Discourtesy: PO Justin Solomon spoke rudely to § 87(2)(b)	A . Unfounded
B . SGT Jason Deonarinesingh	Abuse: Sgt. Jason Deonarinesingh threatened § 87(2)(b) with the use of force.	B . Unfounded
C . POM Andrew Babajko	Force: PO Andrew Babajko hit § 87(2)(b) against a vehicle.	C . Exonerated
D . POM Andrew Babajko	Abuse: PO Andrew Babajko damaged § 87(2)(b) property.	D . Unfounded
E . POM Andrew Babajko	Discourtesy: PO Andrew Babajko spoke rudely to § 87(2)(b)	E . Unfounded
F . POM Justin Solomon	Discourtesy: PO Justin Solomon spoke rudely to § 87(2)(b)	F . Unsubstantiated
G . POM Justin Solomon	Force: PO Justin Solomon used physical force against § 87(2)(b)	G . Exonerated
H . POM Justin Solomon	Abuse: PO Justin Solomon damaged § 87(2)(b) property.	H . Exonerated
I . POM Andrew Babajko	Abuse: PO Andrew Babajko damaged § 87(2)(b) s property.	I . Exonerated
J . SGT Jason Deonarinesingh	Force: Sgt. Jason Deonarinesingh used physical force against § 87(2)(b)	J . Unfounded
K . SGT Jason Deonarinesingh	Discourtesy: Sgt. Jason Deonarinesingh spoke rudely to § 87(2)(b)	K . Unfounded
L . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	L . Officer(s) Unidentified
M . SGT Jason Deonarinesingh	Abuse: Sgt. Jason Deonarinesingh searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	M . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 13, 2014, at approximately 10:25 p.m., Sgt. Jason Deonarinesingh, PO Andrew Babajko and PO Justin Solomon of the 120th Precinct stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants for passing their vehicle by crossing a double yellow line into oncoming traffic. During their interaction with the officers, PO Solomon allegedly spoke rudely to § 87(2)(b) (allegation A). Sgt. Deonarinesingh allegedly stated to § 87(2)(b) “I’m going to fuck you up” (allegation B). PO Babajko allegedly slammed § 87(2)(b) onto the car three times (allegation C), breaking the plastic visor on the car’s door and leaving two dents onto the car (allegation D). PO Babajko then allegedly said to § 87(2)(b) “Can you shut your fucking mouth?” (allegation E). PO Solomon told § 87(2)(b) to, “Put that fucking phone down” (allegation F) and punched her once in the face (allegation G). § 87(2)(b) alleged that PO Solomon damaged her property and § 87(2)(b) alleged that PO Babajko damaged his property as they attempted to take them out of the vehicle (allegations H and I). Also in attempt to get § 87(2)(b) out of the car, Sgt. Singh allegedly grabbed § 87(2)(b) by her hair (allegation J) and called her a “bitch” (allegation K). When § 87(2)(b) § 87(2)(b) mother, arrived on scene, an officer told her to step back or she would be arrested (allegation L). Sgt. Deonarinesingh searched § 87(2)(b) car (allegation M) (see Board review 01, 02 and 03 for civilian CCRB statements). § 87(2)(b) was charged with § 87(2)(b) § 87(2)(b) was charged with § 87(2)(b) (see Board Review 04). § 87(2)(g), § 87(4-b)

Mediation, Civil and Criminal Histories

§ 87(2)(b) and § 87(2)(b) filed a notice of claim with the City of New York, claiming assault and battery among other things and seeking \$2 million each as redress (see Board Review 05). As a result of the ongoing claim and their open criminal case, this case was ineligible for mediation. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b) and § 87(2)(b) have not filed or been involved in any other CCRB complaints (see Board Review 07).
- PO Solomon has been a member of the NYPD for seven years, has had five previous CCRB allegations involving three cases with no substantiated allegations. § 87(2)(g)
- Sgt. Deonarinesingh has been a member of the NYPD for 10 years, has had 31 previous CCRB allegations involving 11 cases with two substantiated allegations for stopping and frisking an individual. § 87(2)(g)
- PO Babajko has been a member of the NYPD for six years, has had seven previous CCRB allegations involving three cases with no substantiated allegations. § 87(2)(g)

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- **Force:** § 87(2)(b) alleged that Sgt. Deonarinesingh punched § 87(2)(b) in the stomach. § 87(2)(b) did not make this allegation; § 87(2)(g)

- **Offensive Language:** § 87(2)(b) alleged that PO Solomon called § 87(2)(b) a “bitch,” a “nigger,” and a “slut.” § 87(2)(b) did not make these allegations; § 87(2)(g)
- § 87(2)(g)
- **Force/Discourtesy:** § 87(2)(b) § 87(2)(b) alleged that after § 87(2)(b) was in handcuffs, PO Solomon told her to “Shut the fuck up” inside of the police car and punched her in the face twice. § 87(2)(b) did not make these allegations; § 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) identified the subject officers in allegations A, C, D, F, G, H, J and K by name. She explained that her father arrived at the stationhouse after her arrest and obtained the names of PO Solomon, PO Babajko and Sgt. Deonarinesingh. Next to their names, he wrote what they were wearing and she was able to match their descriptions to their names. § 87(2)(b) described PO Solomon as a 6’1”-6’2” tall white male in his mid-30s with orange hair and a beard and a slim build. PO Solomon is a white male § 87(2)(b). He has brown hair and blond eyes. At the time of the incident, he was § 87(2)(b). PO Solomon admitted to verbally and physically interacting with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) described PO Babajko as a 6’3-6’4” tall white male with a stocky build of approximately 275 pounds in his early 30s with no facial hair and dark brown or black hair. PO Babajko is a white male § 87(2)(b) with brown hair and black eyes. At the time of the incident, he was § 87(2)(b). PO Babajko admitted to being the only officer to physically interact with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) identified Sgt. Deonarinesingh by name as Sgt. Singh and described him as a 5’5-5’6” tall black male in his mid-30s with a muscular build of 180 pounds and a mocha complexion and dark curly hair in a ponytail. § 87(2)(b) described the officer who threatened to use force against him as a 5’7-5’8” tall Hispanic or Indian male with a bronze skin complexion and jet black curly hair. Sgt. Deonarinesingh is a black male § 87(2)(b) with black hair and brown eyes. At the time of the incident, he was § 87(2)(b). Sgt. Deonarinesingh admitted to interacting with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) described the officer that threatened to arrest her as a 6’0” tall white male with black hair and a heavy build in a uniformed white shirt. Neither Sgt. Deonarinesingh nor PO Babajko could recall whether additional units arrived on scene. PO Babajko recalled that additional units arrived; however, he could not recall who the officers were or which units they belonged to. He noted in his memo book that a sergeant from the 120th Precinct escorted § 87(2)(b) § 87(2)(b) back to the stationhouse (see Board Review 08); however, he did not note any of the sergeant’s identifying information. The event information sheet and chronology confirms this; however, it also does not note any of the sergeant’s identifying information. The event unit information sheet did not note any other units responding to the scene (see Board Review 09). All of the lieutenants on the roll call are white males and there were four sergeants working in the field that day (see Board Review 10). § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that Sgt. Deonarinesingh searched § 87(2)(b) car. Sgt. Deonarinesingh denied searching the car. PO Babajko admitted to

searching the car and did not know whether another officer searched the car as well. § 87(2)(b)
§ 87(2)(g)

Recommendations

Allegation A- Discourtesy: PO Justin Solomon spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that when the officers approached her car, she asked them why she was being stopped. PO Solomon allegedly stated, “Shut the fuck up. Get the fuck out of the car.”

§ 87(2)(b) stated that when the officers approached they said, “Can you please step out of the car?” § 87(2)(b) and § 87(2)(b) asked them what they did wrong and the officers continued to ask them eight or nine times to step out of the car. § 87(2)(b) stated that even after that PO Solomon asked § 87(2)(b) again to please step out of the car.

PO Babajko stated that he ordered § 87(2)(b) out of the car by saying, “Please get out of the car.” He did not recall stating, “Shut the fuck up” or “Get the fuck out of the car” and did not hear another officer make that statement (see Board Review 11). Sgt. Deonarinesingh and PO Solomon stated that none of them made the alleged statements (see Board Review 12 and 13).

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegation A be closed as **unfounded**.

Allegation B- Abuse of Authority: Sgt. Jason Deonarinesingh threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that when he put one of his feet out of the car, Sgt. Deonarinesingh noticed that he had a knife in his pocket. Sgt. Deonarinesingh announced that he had a knife, grabbed § 87(2)(b)'s shirt and attempted to pull him out of the car. § 87(2)(b) held § 87(2)(b) back, prohibiting Sgt. Deonarinesingh from pulling § 87(2)(b) out of the car. Sgt. Deonarinesingh allegedly said to § 87(2)(b) “I’m going to fuck you up.”

§ 87(2)(b) stated that while Sgt. Deonarinesingh attempted to pull § 87(2)(b) out of the car, the officers commanded him to get out of the car and asked him about the name tag he was wearing from Dick’s Sporting Goods. § 87(2)(b) let § 87(2)(b) go as he requested and he stepped out of the car.

Sgt. Deonarinesingh stated that he had no physical or verbal interaction with § 87(2)(b). PO Babajko corroborated Sgt. Deonarinesingh’s statement that he had no physical interaction with § 87(2)(b). PO Babajko and PO Solomon agreed that no officer stated to § 87(2)(b) “I’m going to fuck you up.”

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegation B be closed as **unfounded**.

Allegation C- Force: PO Andrew Babajko hit § 87(2)(b) against a vehicle.

Allegation D- Abuse of Authority: PO Andrew Babajko damaged § 87(2)(b) property.

It is undisputed that PO Babajko pushed § 87(2)(b) against the car, causing his chest to strike the car.

§ 87(2)(b) stated that prior to stepping out of the car, he “lost it” when seeing what the officers were doing to § 87(2)(b). He started screaming and cursing. After he stepped out of the car, PO Babajko grabbed his wrist, spun him around and slammed him onto the car. His chest hit the car, allegedly breaking the plastic visor over the passenger’s side door. § 87(2)(b) was placed in handcuffs and turned around to face PO Babajko. § 87(2)(b) attempted to turn around

to see what was happening with § 87(2)(b) PO Babajko told him to keep still and then lifted him off of the ground by his arms and slammed him onto the roof of the car. § 87(2)(b)'s torso hit the roof, leaving a dent. As § 87(2)(b) slid down the car, PO Babajko grabbed the back of his head and slammed his head against the car's door, leaving another dent above the window. § 87(2)(b) allegedly sustained shoulder pains from being lifted by his arms and a bruise to forehead. He stated that he went to § 87(2)(b) after he was released but left before seeing a doctor. § 87(2)(b) provided photographs of the alleged damage to the car (see Board Review 14 and 15).

§ 87(2)(b) alleged that after § 87(2)(b) stepped out of the car, PO Babajko grabbed his arms, placed them behind his back, lifted him up by his arms off of his feet and slammed him on the roof of the car. PO Babajko then brought him back down and placed him in handcuffs. § 87(2)(b) had not been moving around nor doing anything with his body at the time.

§ 87(2)(b) was unable to find indications of treatment for § 87(2)(b) around the incident date. A medical treatment of prisoner form was not prepared for § 87(2)(b) and the Department of Correctional Health Services did not have a pre-arraignment screening form on record for § 87(2)(b) (see medical records).

PO Babajko stated after § 87(2)(b) was pulled from the vehicle, he refused to put his arms behind his back and pushed off of the car and PO Babajko with his body. PO Babajko stated that he pushed him onto the trunk of the car to gain leverage on his arms. His chest hit the trunk but not with enough force to cause damage to the vehicle. § 87(2)(b) continued to resist by kicking his legs and attempting to push himself off of the trunk. PO Babajko pushed § 87(2)(b) further up onto the trunk to stop him from pushing off of the ground with his legs. PO Babajko did not slam him onto the car anywhere else or cause any known damage to the car. Other than his chest, no other part of his body made contact with the car. PO Babajko did not see any injuries on § 87(2)(b) and he did not complain of any injuries. Sgt. Deonarinesingh stated that after he went over to help with § 87(2)(b) he could no longer see what was happening with § 87(2)(b). He did not see an officer slam § 87(2)(b) onto the vehicle. He did not see any injuries on § 87(2)(b) nor did he see any damage to § 87(2)(b) vehicle. PO Solomon stated that § 87(2)(b) was brought to the back of the car where he was placed in handcuffs without incident. PO Solomon did not see § 87(2)(b) get thrown against the vehicle. He did not see any injuries on § 87(2)(b) and § 87(2)(b) did not complain of any injuries. PO Solomon did not see any damage to her car.

§ 87(2)(b) did not receive any medical treatment or sustain any serious injuries. His arrest photograph did not show any bruising to his head (see Board Review 16) nor did he provide any photographic evidence of his injuries. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Patrol Guide 203-11 states that only the amount of force necessary to overcome resistance will be used to effect an arrest (see Board Review 17).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that allegation C be closed as **exonerated** and allegation D be closed **unfounded**.

Allegation E- Discourtesy: PO Andrew Babajko spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that after PO Babajko slammed him onto the car the first time, he asked PO Babajko why he was being arrested when he did not do anything. PO Babajko allegedly responded, “Can you shut your fucking mouth?”

§ 87(2)(b) did not make this allegation or allege that PO Babajko made any statements to § 87(2)(b) after slamming him on the car.

PO Babajko stated that he did not use any profanity at any point. PO Solomon and Sgt. Deonarinsingh corroborated this.

§ 87(2)(g)

it is recommended that allegation E be closed as **unfounded**.

Allegation F- Discourtesy: PO Justin Solomon spoke rudely to § 87(2)(b)

Allegation G- Force: PO Justin Solomon used physical force against § 87(2)(b)

§ 87(2)(b) stated that after officers told § 87(2)(b) to get out of the car, she put her arm over his chest and told him not to get out of the car. As the officers attempted to take § 87(2)(b) out of the car, PO Solomon began yanking at § 87(2)(b). She moved her shoulder and told him to get off of her. After § 87(2)(b) stepped out of the car, PO Solomon forcefully pulled on § 87(2)(b) while she was still seated in the car with her seatbelt on. § 87(2)(b) grabbed her phone and called home. PO Solomon allegedly said, “Put that fucking phone down” and punched her in the face, making contact with the left side of her jaw and chin.

§ 87(2)(b) stated that as PO Solomon attempted to take § 87(2)(b) out of the car, she held onto the steering wheel. § 87(2)(b) was pleading for the officers not to hurt § 87(2)(b) before PO Solomon allegedly punched § 87(2)(b) in the chin. § 87(2)(b) stated that it was not “hard enough to knock anybody out but just enough to make her shut up.” After he punched her, § 87(2)(b) grabbed her phone. § 87(2)(b) did not see what happened to § 87(2)(b) after this.

PO Solomon did not recall whether § 87(2)(b) had her phone in her hand at any time during the incident. He did not say, “Put that fucking phone down” nor did he punch her in the face. Besides grabbing her by her arms to drag her out of the car, he used no additional force against her. Sgt. Deonarinsingh corroborated his statement. PO Babajko did not see what force was used against § 87(2)(b) because he had been dealing with § 87(2)(b).

Patrol Guide 203-11 states that only the amount of force necessary to overcome resistance will be used to effect an arrest.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation F be closed as **unsubstantiated** and allegation G be closed as **exonerated**.

Allegation H- Abuse of Authority: PO Justin Solomon damaged § 87(2)(b) property.

Allegation I- Abuse of Authority: PO Andrew Babajko damaged § 87(2)(b) s property.

§ 87(2)(b) alleged that as PO Solomon pulled her, he ripped her sweater, her shirt and her bra strap on the left side. § 87(2)(b) alleged that his work vest and shirt were ripped and his glasses and chain were broken.

§ 87(2)(b) provided pictures of the clothing that were allegedly damaged during the incident. The first picture was of rips to the arms of § 87(2)(b) s vest (see Board Review 18). The second picture was of rips to the left arm and left shoulder of § 87(2)(b) sweater (see Board Review 19). The third picture was of § 87(2)(b) tank top shirt and her bra. There was a rip to the left shoulder of the shirt and the left bra strap was broken (see Board Review 20).

§ 87(2)(b) arrest photo shows § 87(2)(b) wearing a sweater that appears to be the same sweater in the picture that she provided (see Board Review 16). However, there is no damage to the sweater in her arrest photo and the location of the damage as shown in the photograph she provided would be visible in the arrest photo. The vest § 87(2)(b) is wearing in his arrest photo appears to be the same vest as shown in the picture § 87(2)(b) provided. There also appears to be some visible damage to the back of his sweater in the same area that was shown in the photograph.

None of the officers were aware or recalled any damage to any of § 87(2)(b) or § 87(2)(b) s property.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that allegations H and I be closed as **exonerated**.

Allegation J- Force: Sgt. Jason Deonarinesingh used physical force against § 87(2)(b)

Allegation K- Discourtesy: Sgt. Jason Deonarinesingh spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that after PO Solomon punched her, Sgt. Deonarinesingh grabbed her by her hair and stated, “You must’ve been real good in social studies bitch.” She later alleged that after they pulled her out of the car, Sgt. Deonarinesingh pulled her hair down in an up and down motion, attempting to hit her face against the ground.

§ 87(2)(b) alleged that once she was out of the car and on the ground, PO Solomon had his hand on the back of her head and his knee in her face and pushed her head down to the ground. He also alleged that § 87(2)(b) was making quotes relating to being Moorish to which PO Solomon told her that she was dumb and failed social studies. § 87(2)(b) stated that when she arrived on scene, § 87(2)(b) was on the ground. She stated that he did not see any officer touch her while she was on the ground.

Sgt. Deonarinesingh denied pulling § 87(2)(b) hair and PO Solomon corroborated this. Sgt. Deonarinesingh also denied calling § 87(2)(b) a “bitch” and PO Solomon did not hear him make that statement. PO Babajko stated that he did not see or hear the interaction between § 87(2)(b) and the other officers prior to her being placed in handcuffs.

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g) . It is therefore recommended that allegations J and K be closed as **unfounded**.

Allegation L- Abuse of Authority: An officer threatened to arrest § 87(2)(b) § 87(2)(g) . It is therefore recommended that allegation L be closed as **officer unidentified**.

Allegation M- Abuse of Authority: Sgt. Jason Deonarinesingh searched the vehicle in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

§ 87(2)(b) alleged that after she was in handcuffs, she saw Sgt. Deonarinesingh search her car including her glove compartment and trunk prior to driving her car back to the stationhouse. § 87(2)(b) and § 87(2)(b) corroborated this.

Sgt. Deonarinesingh stated that he did not search the car and did not recall if any officer did. He assumed that an officer did because he stated that an officer drove the car back to the stationhouse and it is procedure to search the car prior to taking it back to the stationhouse. PO Babajko admitted to searching the car including the center console. He stated that he did not search the trunk. PO Solomon was not sure if § 87(2)(b) car was searched.

Patrol Guide Procedure 218-13 states that whenever any property comes into the custody of the department, an inventory search must be conducted. For a vehicle, the interior must be searched thoroughly including the glove compartment, the center console and the trunk (see Board Review 21).

§ 87(2)(g) . It is therefore recommended that allegation M be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date